

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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PABLO RODRIGUEZ,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer URIEL HENRY, Shield No. 20732; Police Officer MICHAEL MAROTTA, Shield No. 1993; Police Officer THOMAS SORRENTINO, Shield No. 21951; Police Officer JAMES RIORDAN, Shield No. 1020; Captain JOSEPH MEMOLY; and JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

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**AMENDED
COMPLAINT**

12 CV 5033 (KAM)(RLM)

Jury Trial Demanded

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

5. This Court has supplemental jurisdiction over the New York State claims pursuant to 28 U.S.C. § 1367.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action.

PARTIES

7. Plaintiff Pablo Rodriguez (“plaintiff” or “Mr. Rodriguez”) is a resident of Kings County in the City and State of New York.

8. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

9. Defendant Police Officer Uriel Henry, Shield No. 20732 (“Henry”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Henry is sued in his individual and official capacities.

10. Defendant Police Officer Michael Marotta, Shield No. 1993 (“Marotta”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Marotta is sued in his individual and official capacities.

11. Defendant Police Officer Thomas Sorrentino, Shield No. 21951 (“Sorrentino”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Sorrentino is sued in his individual and official capacities.

12. Defendant Police Officer James Riordan, Shield No. 1020 (“Riordan”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Riordan is sued in his individual and official capacities.

13. Defendant Captain Joseph Memoly, (“Memoly”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Memoly is sued in his individual and official capacities.

14. At all times relevant defendants John and Jane Doe 1 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 1 through 10.

15. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

16. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

17. At approximately 8:30 p.m. on May 26, 2012, plaintiff was lawfully in the vicinity of 1213 Riegelmanns, on the boardwalk, in the Coney Island neighborhood of Brooklyn, New York.

18. Plaintiff was at the abovementioned location walking to meet his wife when officers approached him.

19. For no apparent reason, defendants directed Mr. Rodriguez to produce his identification.

20. As plaintiff reached into his wallet to produce identification he asked why, to which a defendant officer said, in some, lock him up.

21. When plaintiff asked why he was being arrested, defendants knocked him to the ground.

22. Defendants assaulted and battered plaintiff including striking him with closed fists, batons and by kicking him.

23. During the course of the assault, defendants tore and ripped off plaintiff's shirt.

24. After being handcuffed a defendant officer stuck his knee into plaintiff's neck as plaintiff lay helpless on the ground.

25. Defendants forcefully lifted plaintiff off the ground by his handcuffs.

26. Plaintiff was eventually taken to the 60th precinct and put into a cell

bloodied and shirtless.

27. Notwithstanding that plaintiff was bleeding and limping from the assault he suffered, no medical treatment was provided.

28. After approximately three hours in custody, plaintiff was taken to Brooklyn Central Booking.

29. Upon information and belief, officers from Central Booking contacted officers from the 60th Precinct regarding plaintiff's condition.

30. Approximately four hours later, defendants from the 60th Precinct came to Central Booking and took plaintiff to Coney Island Hospital.

31. Plaintiff remained at Coney Island Hospital for approximately seven days where he underwent treatment including multiple blood transfusions as a result of the beating he sustained at the hands of defendants.

32. Defendants falsely informed employees of the Kings County District Attorney's Office that plaintiff had engaged in disorderly conduct and resisted arrest.

33. Defendants did not observe plaintiff engage in disorderly conduct nor did he resist arrest.

34. On June 1, 2012, at an arraignment where Mr. Rodriguez had to appear from his hospital bed, plaintiff was released on his own recognizance.

35. After several court appearances, in Kings County Criminal Court, the criminal charges were adjourned in contemplation of dismissal.

36. Within ninety days after the claim alleged in this Complaint arose, a written notice of claim was served upon defendants at the Comptroller's Office.

37. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

38. This action has been commenced within one year and ninety days after the happening of the events upon which the claims are based.

39. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, severe pain, significant bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM

Unlawful Stop and Search

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

42. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM

False Arrest

43. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

44. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

45. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM

State Law False Imprisonment and False Arrest

46. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

47. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning and falsely arresting plaintiff.

48. Plaintiff was conscious of his confinement.

49. Plaintiff did not consent to his confinement.

50. Plaintiff's confinement was not otherwise privileged.

51. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FOURTH CLAIM
Unreasonable Force

53. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

54. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

55. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM
State Law Assault and Battery

56. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

57. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

58. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SIXTH CLAIM
Deliberate Indifference to Medical Needs

60. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

61. The individual defendants were aware of a risk to plaintiff's safety and a need for medical care and failed to act in deliberate indifference to plaintiff's needs.

62. Accordingly, defendants violated the fourteenth amendment because they acted with deliberate indifference to plaintiff's medical needs and safety.

63. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CLAIM
Failure To Intervene

64. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

65. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

66. Accordingly, the defendants who failed to intervene violated the Fourth, and Fourteenth Amendments.

67. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

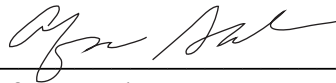
PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: April 12, 2013
New York, New York

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